

Court No. - 37

Case :- WRIT - C No. - 44843 of 2017

Petitioner :- Ram Prasad

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. And 2 Others

Counsel for Petitioner :- Giridhary Lal Choudhary, Amar Nath Bhargava

Counsel for Respondent :- C.S.C., Pranjali Mehrotra

Hon'ble Amreshwar Pratap Sahi, J.

Hon'ble Rajiv Lochan Mehrotra, J.

Heard learned counsel for the petitioner.

The petitioner had earlier come up in Writ Petition No. 21942 of 2016 that was disposed of with the liberty to make an appropriate complaint before the competent authority, the judgment dated 12.05.2016 is extracted hereinafter:-

"Heard learned counsel for the parties and perused the material available on record.

Petitioner has approached this Court challenging the proceedings initiated by the respondent-Corporation for recovery of its outstanding dues. Petitioner challenges the correctness of the bill for which recovery has been initiated.

Clause 6.5 (b) of the U.P. Electricity Supply Code, 2005 (for short the Code) provides for making a complaint before the competent authority if the consumer disputes the accuracy of the bill.

Since the disputed questions of fact are involved and the petitioner has a remedy, this writ petition stands disposed of with the liberty to the petitioner to make an appropriate complaint before the competent authority in accordance with the provisions of clause 6.5 (b) of the Code within a period of one week from today with the further direction to the authority concerned to consider and pass appropriate orders on the complaint so made in accordance with law within a further period of two weeks of the making of the complaint.

For a period of four weeks or till the disposal of the complaint, as directed aforesaid, whichever is earlier, recovery proceedings initiated against the petitioner shall remain in abeyance and shall abide by the orders to be passed by the authority concerned."

The petitioner has again come up this Court complaining of no action having been taken and the bills having been raised as indicated in the said judgment, this dispute can be raised before the Executive Engineer himself.

We are, therefore, not inclined to entertain this writ petition, it is open to the petitioner to approach the Executive Engineer concerned for the redressal of his grievances.

With the said direction, writ petition is **disposed of**.

Order Date :- 21.9.2017

S.Chaurasia